



File No.: EXP202300269

RESOLUTION No.: R/00471/2023

Considering the complaint filed on November 30, 2022, with this Agency by A.A.A. (hereinafter the complainant), against B.B.B. (hereinafter the respondent), for not having duly attended to their request to exercise rights established in Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, regarding the protection of natural persons with regard to the processing of personal data and the free movement of such data (hereinafter, GDPR). After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter LOPDGDD), the following has been established:

FACTS

FIRST: The complainant exercised the right of Erasure against the respondent, and their request, as stated by the complainant, did not receive the legally established response.

The complainant provides various documents related to the complaint filed with this Agency and regarding the exercise of the right exercised.

SECOND: Once the procedure provided for in Article 65.4 of the LOPDGDD was fulfilled, the complaint was admitted for processing, and the respondent entity was granted a hearing period, to present any allegations they deemed appropriate within ten working days.

The respondent entity has not demonstrated, during the formalized procedures, that it has responded to the request for the exercise of rights presented by the complainant.

LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for Data Protection is competent to resolve this matter, in accordance with the provisions of paragraph 2 of Article 56 in relation to paragraph 1 f) of Article 57, both of the GDPR; and in Article 47 of the LOPDGDD.

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among controllers and processors regarding their obligations, as well as handling complaints submitted by a data subject and investigating the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

Likewise, the internal legal framework, in Article 65.4 of the LOPDGDD, has provided a mechanism prior to the admission of complaints filed with the Spanish Agency for Data Protection, which consists of forwarding them to the data protection officers designated by the controllers or processors, for the purposes provided for in Article 37 of the aforementioned regulation, or to them when they have not designated any, so that they proceed to analyze such complaints and respond within one month.

In accordance with this regulation, prior to the admission of the complaint that gives rise to this procedure, it was forwarded to the responsible entity for them to analyze it, respond to this Agency within one month, and demonstrate that they had provided the complainant with the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

The result of this forwarding did not allow for understanding the complainant's claims to be satisfied.

Consequently, on February 28, 2023, for the purposes provided for in Article 64.2 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

This admission agreement determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure shall be six months from the date on which the complainant was notified of the admission agreement. After this period, the interested party may consider their complaint to be upheld.”

It is not deemed appropriate to clarify administrative responsibilities within the framework of a sanctioning procedure, whose exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its opening, with no obligation to initiate a

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procedure before any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with the present procedure the guarantees and rights of the claimant are duly restored.

THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated. The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in the event that it does not intend to comply with such request.

The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

FOURTH: In the case analyzed here, the claimant exercised their right to Erasure regulated in Article 17 of the GDPR and Article 15 of the LOPDGDD. After the period established in accordance with the aforementioned regulations, their request did not receive the legally required response. The entity being complained about has not attended to the request of the claimant nor the requirements that have been sent to it by this Agency.

The aforementioned regulations do not allow the request to be disregarded as if it had not been made, leaving it without the response that the data controllers are obliged to issue, even in the event that there are no data of the data subject in the entity's files or even in those cases where the requirements are not met, in which case the recipient of such request is also obliged to require the correction of the observed deficiencies or, if applicable, deny the request with reasons indicating the causes for which it is not appropriate to consider the right in question.

Therefore, the request made obliges the data controller to provide an express response, in any case, using any means that justifies the receipt of the response.

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Since no copy of the necessary communication that must be directed to the claimant informing them

about the decision taken regarding the request for the exercise of rights has been provided, it is appropriate to uphold the complaint that originated this procedure.

Considering the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint made by A.A.A. and to urge B.B.B., with NIF ***NIF.1, to send to the claimant, within ten working days following the notification of this resolution, a certification addressing the exercised right of Erasure or denying it with reasons indicating the causes for which it is not appropriate to attend to the request, in accordance with what is established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure (Article 18.4 of the LOPD), and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, a voluntary appeal for reconsideration may be filed before the Director of the Spanish Agency for Data Protection, within one month from the day following the notification of this resolution, or directly an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the Fourth Additional Provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned legal text.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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